

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Rudy Cabrera and Juan Valdez

Plaintiffs

-against-

City of New York, New York City Police Department
New York City Police Officer Kieron Ramdeen, Shield
4376 of the NARCB BX Command and New York City
Police Officers John Doe,Defendants
-----X

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Index Number:

Date Purchased:

Date Filed:

SUMMONS

Plaintiff Cabrera's
residence is:1801 Weeks Avenue
Bronx, NY 10457

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and Plaintiffs reside in Bronx County.

Dated: November 15, 2015
New York, NY

~~Yours, etc.,~~

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

New York City Police Officer Kiernon Ramdeen, Shield 4376 of the NARCB BX

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiffs	:
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-against-	:
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City of New York, New York City Police Department	:
New York City Police Officer Kieron Ramdeen, Shield	:
4376 of the NARCBBX Command and New York City	:
Police Officers John Doe,	:
	:
Defendants	:
-----X	

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Rudy Cabrera, (hereinafter referred to as "CABRERA") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Juan Valdez, (hereinafter referred to as "VALDEZ") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, the New York City Police Officer Kieron Ramdeen, Shield number 4376 of the NARCBBX Command (hereinafter referred to as "RAMDEEN") was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as "DOES") were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
7. On or about September 17, 2014 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about November 3, 2014, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about August 29, 2014 at approximately 7:00PM in the vicinity of Weeks Avenue and East 175 Street, Bronx, NY Plaintiffs were each smoking a cigarette when RAMDEEN and DOES approached Plaintiffs, handcuffed and arrested them.
10. That at no time did any of the Plaintiffs engage in any criminal or unlawful behavior
11. That at not did any of the Plaintiffs possess anything of an illegal or unlawful nature.
12. That after Plaintiffs were arrested, they were transported to the 46 police precinct.
13. That while Plaintiffs were inside of the 46 precinct, Plaintiffs were held in a holding cell occupied with other males for several hours.

14. That after several hours of being held in the 46 Precinct, Plaintiffs were transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.
15. That Plaintiffs were then held for several hours in a cell occupied with other men for several hours.
16. That the cell Plaintiffs were in did not have a working toilet.
17. That Plaintiffs were each subjected to harassment by other male prisoners.
18. That on August 30, 2014, Valdez was arraigned on docket 2014BX046632 charging him with Criminal Sale of a Controlled Substance in the Third Degree and related offenses.
19. That at the time of his arraignment, bail was set as Valdez and he was remanded to a New York City Correctional Facility.
20. That on and between August 30, 2014 and September 4, 2014, Plaintiff was remanded to a New York Correctional Facility.
21. That on September 4, 2015, the case against Valdez was dismissed upon application of the Bronx District Attorney.
22. That on August 30, 2014, Valdez was arraigned on docket 2014BX046633 charging him with Criminal Sale of a Controlled Substance in the Third Degree and related offenses.
23. That at the time of his arraignment, bail was set as Valdez and he was remanded to a New York City Correctional Facility.
24. That on and between August 30, 2014 and September 4, 2014, Plaintiff was remanded to a New York Correctional Facility.
25. That on September 4, 2015, the case against Cabrera was dismissed upon application of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

26. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 25, as if more fully stated herein at length.
27. That Defendants acted with actual malice toward Plaintiff CABRERA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
28. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
29. That as a result of the actions by Defendants, Plaintiff CABRERA was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.
30. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.
31. That as a result of the Defendants' actions, Plaintiff CABRERA has been unable to sleep.
32. That as a result of the Defendants' actions, Plaintiff CABRERA hired an attorney to represent him.
33. That as a result of the Defendants' actions, Plaintiff CABRERA missed multiple days of work.

34. That as a result of the Defendants' actions Plaintiff CABRERA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff CABRERA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

37. Defendants having no lawful authority to arrest Plaintiff CABRERA, did, nevertheless, unlawfully arrest Plaintiff CABRERA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff CABRERA is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Defendants conspired to violate Plaintiff CABRERA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff CABRERA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. Plaintiff CABRERA was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff CABRERA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff CABRERA by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff CABRERA. Plaintiff CABRERA is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. At all times pertinent hereto, RAMDEEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

44. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RAMDEEN and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

45. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff CABRERA. Plaintiff CABRERA is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff CABRERA.

49. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff CABRERA.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

50. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 49, as if more fully stated herein at length.

51. That Defendants acted with actual malice toward Plaintiff VALDEZ and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff VALDEZ.

52. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

53. That as a result of the actions by Defendants, Plaintiff VALDEZ was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

54. That as a result of the Defendants' actions, Plaintiff VALDEZ has been unable to sleep.

55. That as a result of the Defendants' actions, Plaintiff VALDEZ hired an attorney to represent him.

56. That as a result of the Defendants' actions, Plaintiff VALDEZ missed multiple days of work.

57. That as a result of the Defendants' actions Plaintiff VALDEZ sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

58. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff VALDEZ as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

60. Defendants having no lawful authority to arrest Plaintiff VALDEZ, did, nevertheless, unlawfully arrest Plaintiff VALDEZ with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff VALDEZ is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

61. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. Defendants conspired to violate Plaintiff VALDEZ's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff VALDEZ is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff VALDEZ to suffer physical and severe emotional distress for which the Defendants are individually liable. The

verbal abuse, false arrest and false imprisonment on and of Plaintiff VALDEZ by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff VALDEZ. Plaintiff VALDEZ is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

65. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. At all times pertinent hereto, RAMDEEN and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

67. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RAMDEEN and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

68. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 67, as if more fully stated herein at length.

69. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff VALDEZ. Plaintiff VALDEZ is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

70. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 69, as if more fully stated herein at length.

71. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff VALDEZ.

72. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff VALDEZ.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of

this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

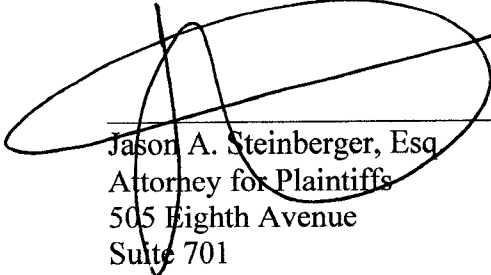
On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

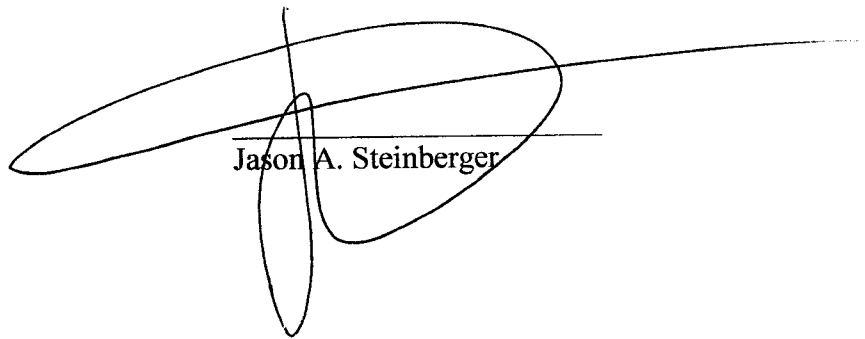


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: November 15, 2015



Jason A. Steinberger

Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RUDY CABRERA AND JUAN VALDEZ,

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT POLICE, NEW
YORK CITY POLICE OFFICER KIERON RAMDEEN, SHIELD 4376 OF THE
NARCBX COMMAND AND NEW YORK CITY POLICE OFFICERS JOHN DOE,**

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
☐ once of the Judges of the within named Court,

**NOTICE OF
SETTLEMENT**

at
on

200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018

To:
Attorney(s) for